

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: June 11, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

PLEASE NOTE: JUDGE HESSELTINE IS UNAVAILABLE FOR ORAL ARGUMENT ON THURSDAY, JUNE 11, 2026. THE PARTIES MAY EITHER SUBMIT ON THE TENTATIVE RULINGS SET FORTH BELOW OR APPEAR ON JUNE 11, 2026, AT 2:00 P.M., TO REQUEST ORAL ARGUMENT, AND THE COURT CLERK WILL PROVIDE A HEARING DATE AS DIRECTED BY JUDGE HESSELTINE. IF NO ONE APPEARS TO REQUEST ORAL ARGUMENT, ALL PARTIES WILL BE DEEMED TO HAVE SUBMITTED ON THE FOLLOWING TENTATIVE RULING AND IT WILL BE ADOPTED AS THE FINAL RULING OF THE COURT.

#	Case Name Case Number	Tentative
1.	Landmark Research Group, LLC vs. Shea 2026-01561746	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the petition of petitioner Landmark Research Group, LLC (Petitioner) to compel contractual arbitration. As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. Code of Civil Procedure section 1290.4, subdivision (a), requires a petition to compel arbitration and notice of hearing to be served on the opposing party in the manner

		provided in the arbitration agreement. If the agreement does not provide a method of service and the respondent has not appeared in the case, section 1290.4, subdivision (a), requires the petition and notice of hearing to be served in the same manner as a summons if service is made in California. If service is made outside of California, service may be made by certified or registered mail and a signed return receipt is required. Here, Petitioner has failed to file a proof of service showing the petition or a notice of hearing was served on respondents Bart Shea, Bermite Recovery, LLC, Remediation Financial, Inc., or Shea-Connelly Development, LLC (collectively, Respondents). Petitioner has not identified any provision in the alleged arbitration agreement that dictates a particular method of service for this petition, nor has Petitioner provided any evidence to show where service may have been made, if at all. Moreover, it is unclear whether any of Respondents entered into an arbitration agreement with Petitioner. The agreement that is attached to the petition is a letter agreement by Petitioner addressed to Richard R. Thomas, Esq. of Smith LC in Mesa, Arizona. There is a signature line for "Approved, Responsible Party," but there is no indication who the "Responsible Party" is and the signature is not legible. Moreover, assuming the signature is that of Bart Shea, there is no evidence or other indication how that signature binds any of the other Respondents. The letter also does not include all the identified enclosures. The petition therefore is DENIED WITHOUT PREJUDICE based on the lack of service and proper notice, as well as the failure to establish the existence of an arbitration agreement between Petitioner and Respondent. The foregoing are not necessarily all the petition's shortcomings, but they are sufficient to support its denial. Any future petition will require much greater detail and evidentiary support as well as proper notice and service. Petitioner's counsel is ordered to give notice of this ruling.
2.	McPhatter vs. Fastrak Credit Corp. 2026-01563881	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the petition to compel arbitration and for monetary sanctions filed by petitioner Vardell James McPhatter (Petitioner). As more fully set forth below, the petition is GRANTED and Petitioner is awarded sanctions against respondent Fastrak Credit Corp. (Respondent) in the reduced amount of \$1,815.

		The drafting party of an arbitration agreement who fails to timely pay arbitration fees is in material breach of the arbitration agreement and waives its right to compel arbitration, provided the consumer properly files the demand and the arbitration provider properly provides invoices to all parties to the arbitration. (Code Civ. Proc. § 1281.97, subd. (a).) In such event, the consumer may either withdraw the claim from arbitration and proceed in a court of appropriate jurisdiction or compel arbitration in which the drafting party must pay reasonable attorney fees and costs related to the arbitration. (Code Civ. Proc. § 1281.97, subd. (b).) In addition, the consumer is entitled to reasonable attorney fees and costs incurred as a result of the material breach. (Code Civ. Proc., § 1281.99, subd. (a).) Here, Petitioner produced the parties' Conditional Sale Contract and Security Agreement which contains an arbitration provision that covers this dispute. (Compendium of Evidence (COE), Exh. 1 at pp. 7-8.) Petitioner is a consumer and Respondent is the drafting party. Petitioner initiated arbitration with JAMS pursuant to the arbitration agreement by filing the demand for arbitration and paying his portion of the fees. (COE, Ex. 1 at p. 7, Exhs. 3, 4; McPhatter Decl. ¶ 2.) JAMS invoiced Respondent to pay for its portion of the arbitration fees, but Respondent failed to do so, causing JAMS to close the file. (COE, Exhs. 4-7.) Petitioner has shown Respondent is in material breach of the arbitration agreement and is in default of the arbitration, such that Petitioner is entitled to compel arbitration pursuant to Code of Civil Procedure section 1281.97, subdivision (b). Petitioner also is entitled to sanctions for reasonable attorney fees and costs in bringing this motion. (Code Civ. Proc., § 1281.99, subd. (a).) The court finds the amount of fees and costs already incurred by Petitioner is reasonable, but the amount of anticipated fees is excessive in light of the fact no opposition was filed. The court therefore reduces the amount of anticipated fees by \$630 and awards the total amount of \$1,815 in favor of Petitioner and against Respondent payable within 30 days of service of notice of this ruling. Petitioner's counsel is ordered to give notice of this ruling.
3.	<i>Knypstra vs. SheldonKnypstra vs. Sheldon</i>	CONTINUED TO AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23, as stated in the June 5, 2026 order based on request and application of petitioner.

	2026-01552256	
4.	Pacheco v. MaaRanu 2025-01497228	CONTINUED TO AUGUST 6, 2026, AT 2:00 P.M., IN DEPARTMENT C23 , pursuant to June 2. 2026 minute order.
5.	In Re: Crestpoint Capital, LLC 2026-01559773	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the petition of petitioner Crestpoint Capital LLC (Petitioner) for court approval of proposed transfer of certain periodic payments real party in interest and payee Samantha Mena (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the hearing on the petition is CONTINUED TO AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Petitioner to provide additional information necessary to enable the court to determine whether the required findings can be made. In these proceedings, Petitioner seeks court approval for Payee to transfer four periodic payments including one semiannual payment of \$10,000 due on January 1, 2027, one lump sum payment of \$25,000 due on May 3, 2027, one lump sum payment of \$50,000 due on May 3, 2031, and one lump sum payment of \$60,000 due on May 3, 2034. These payments total \$145,000 and have a discounted present value of \$113,946.41. In exchange for transferring the right to receive these monthly payments, Payee would receive a present, lump sum payment of \$61,799.25, which represents 54.24 percent of the payments' present value and equates to an equivalent interest rate of 19.96 percent if Payee were to take a loan. Insurance Code section 10139.5, subdivision (b) requires the court to consider a variety of circumstances, including Payee's financial and economic situation, to determine whether the transfer is fair and reasonable, and in the best interest of the Payee. Petitioner and Payee, however, have failed to provide sufficient information for the court to make such a determination, including the amounts and sources of monthly income and/or financial resources, and Payee's monthly expenses. (Ins. Code § 10139.5, subd. (c)(2).) Payee states she has been supporting herself for three years, but also states she is unemployed. Those statements are contradictory without further information and explanation. It also is unclear from the petition whether Payee is entitled to any other payments under the settlement agreement and annuity other than the payments to which she seeks to

		transfer. The settlement agreement was not provided with the petition. Identification of all payments to which Payee is entitled under the settlement and annuity, all payments Payee has received, all payments Payee will receive in the future, and any payments Payee previously has transferred is an essential component of her financial circumstances. Furthermore, copies of the annuity contract and/or qualified assignment agreement were not submitted with the petition and Petitioner fails to state what efforts were made to locate these documents. The conclusory statement that Payee looked is not sufficient. (Ins. Code § 10139.5, subd. (f)(2)(E), (F), (H).) The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before this transaction can be approved, if at all. Indeed, the court is not convinced at this point that the terms, as described above, are in Payee's best interest. Accordingly, Petitioner and Payee are ordered to file additional declaration(s), modified documents and any other documents needed to provide the court with the foregoing information about Payee's financial condition and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date. Based on the foregoing, the petition is CONTINUED as set forth above. Petitioner's counsel is ordered to give notice.
6.	<i>In Re: CBC Settlement Funding, LLC</i> <i>2026-01559765</i>	<u><i>Please see notice above regarding oral argument on this motion/petition</i></u> Before the court is the petition of petitioner CBC Settlement Funding LLC (Petitioner) for court approval of proposed transfer of one lump sum payment real party in interest and payee Brandon Thompson (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the hearing on the petition is CONTINUED TO AUGUST 13, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Petitioner to provide additional information necessary to enable the court to determine whether the required findings can be made. In these proceedings, Petitioner seeks court approval for Payee to transfer the rights to one, guaranteed lump payment of \$375,000 due on July 6, 2046. The payment has a discounted present value of \$150,338.27. In

		exchange for transferring the right to receive this payment, Payee would receive a present, lump sum payment of \$72,000, which represents 47.9 percent of the payment's present value and equates to an equivalent interest rate of 8.5 percent if Payee were to take a loan. Insurance Code section 10139.5, subdivision (b), requires the court to consider a variety of circumstances, including Payee's financial and economic situation, to determine whether the transfer is fair and reasonable, and in the best interest of Payee. Petitioner and Payee, however, have failed to provide sufficient information for the court to make such a determination. Payee does not state his age (as required by Ins. Code §10139.5, subd. (c)(1)), whether he owns an interest in the home located at 122 E Avenida Cornelio, San Clemente, CA 92672, whether anyone else owns or lives with him at the residence, whether there is a mortgage and who pays for the mortgage, whether Payee has any source of income or financial resources other than his employment with CAL FIRE, and Payee's monthly expenses. Such information is necessary to determine Payee's financial and economic situation. The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before this transaction can be approved, if at all. Indeed, although the payment to be transferred is 20 years in the future, it is not a life contingency payment and Payee is not even receiving 50 percent of the present value. Accordingly, Petitioner and Payee are ordered to file additional declaration(s) and any other documents needed to provide the court with the foregoing information about Payee's financial condition and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date. Based on the foregoing, the petition is CONTINUED as set forth above. Petitioner's counsel is ordered to give notice.
7	Gouvis Engineering Consulting Group, Inc. vs. Deihimi 2016-00892751	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the "Third Party Claim (CCP 720.110, 720.130, 720.230)" filed by "Amir Deihimi, president of Core Structure, Inc., as Trustee" and the notice of hearing and opposition to the third party claim filed by plaintiff and

		judgment creditor Gouvis Engineering Consulting Group, Inc. (Creditor). Initially, the court notes Amir Deihimi (Deihimi) and Core Structure, Inc. (Core) are defendants and judgment debtors on the judgment entered in this action. The third party claim procedures may not be utilized by parties to the action. (Ahart, Cal. Prac. Guide: Enf. J. & Debts (The Rutter Group 2025) at ¶ 16:1605 citing <i>Commercial & Farmers Nat'l Bank v. Hetrick</i> (1976) 64 Cal.App.3d 158, 134.) In an effort to avoid this rule, Deihimi and Core assert the third party claim as a "Trustee." They contend the funds in the levied accounts are Core's employees' payroll funds and related withholdings, and they therefore are asserting the claim on behalf of their employees, who are third parties. Specifically, they claim \$14,427 of the levied funds constitute tax/payroll withholdings from Core's employers and \$58,418 constitutes wages earned by Core's employees on the date of levy. The authorities Deihimi and Core cite in support of their argument, however, fail to establish Core holds the funds at issue as a trustee for its employees. Moreover, assuming Core could be deemed to be a trustee of these funds with standing to bring this third party claim, Deihimi and Core have failed to present any evidence to establish any of the facts necessary to support this argument. At the hearing, Deihimi and Core bear the burden of proof to present admissible evidence establishing every factual predicate necessary to support their argument. (Ahart, Cal. Prac. Guide Enf. J. & Debts (The Rutter Group, June 2025 Update) ¶ 6:1687.1, citing Code Civ. Proc., § 720.360; <i>Dickson v. Mann</i> (2024) 103 Cal.App.5th 935, 945; <i>Oxford Street Properties, LLC v. Rehabilitation Assocs., LLC</i> (2012) 206 Cal.App.4th 296, 307; <i>Whitehouse v. Six Corp.</i> (1995) 40 Cal.App.4th 527, 533.) Moreover, Deihimi and Core will need to present further authorities to convince the court their trustee argument is a viable one because the authorities they presented in the claim did not do so. Based on the foregoing, the tentative ruling is to DENY the third party claim. Creditor's counsel will be ordered to give notice of this ruling if the parties submit.
8.	Richey vs. Roberts	OFF CALENDAR pursuant to the June 4, 2026 minute order.

	06CC11271	
9.	Gamo vs. J Star Auto Group, Inc. 2017-00942930	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the motion by defendants J Star Auto Group, Inc. (JStar) and Jared Merrell (collectively, Defendants) for an award of attorney fees following the remittitur issued by the Court of Appeal on October 17, 2025. For the reasons set forth herein, the motion is DENIED. On December 15, 2022, the court entered judgment in favor of Defendants and against plaintiff Tirso Gamo (Plaintiff) on all causes of action. During this litigation, Defendants were jointly represented by Vivoli Saccuzzo, LLP. Plaintiff filed the case on September 11, 2017. On July 20, 2018, JStar served requests for admissions, set one, on Plaintiff, which included request nos. 1-54. Plaintiff served responses on August 27, 2018. On January 18, 2019, JStar served requests for admissions, set two, on Plaintiff, which included request nos. 55-71. Plaintiff served responses on to those requests on October 10, 2019. Plaintiff denied some of these various requests for admissions (and also withdrew some admissions that were initially made). Following trial, Defendants filed this motion seeking to recover cost of proof fees and expenses under Code of Civil Procedure section 2033.420, and also prevailing defendant attorney fees and costs under the Consumer Legal Remedies Act (CLRA). Defendants argued Plaintiff's CLRA claim were inextricably intertwined with his other claims such that there was no need to allocate Defendants' fees and expenses as between Plaintiff's CLRA claims and his other claim, or between fees recoverable for cost of proof and fees recoverable under the CLRA. As originally filed, Defendants sought \$321,728 in fees plus a multiplier of 1.5 for a total fee award of \$482,592. The trial court denied the motion in its entirety, finding the unilateral fee provision applicable to Plaintiff's financial elder abuse claim barred Defendants from recovering their fees under any other statutory provision. Defendants appealed. The Court of Appeal reversed in part and affirmed in part, finding the unilateral fee provision applicable to Plaintiff's financial elder abuse claim barred Defendants' attorney fees request under the CLRA, but that unilateral provision did not bar Defendants from recovering cost of proof expenses and fees if they made all necessary showings. Because the trial court did not otherwise address the merits of

		Defendants’ cost of proof fees request, the Court of Appeal remanded the matter for the court to consider that request on the merits. Following remand, and recognizing Code of Civil Procedure section 2033.420 is the only basis for the expenses and fee request, Defendants dropped their request for a multiplier and reduced the fees they seek from \$321,728 to \$314,203. Defendants explain they are seeking all attorney fees incurred from the date JStar served its first set of requests for admissions. Section 2033.420 states as follows: “(a) If a party fails to admit the genuineness of any document or the truth of any matter when requested to do so under this chapter, and if the party requesting that admission thereafter proves the genuineness of that document or the truth of that matter, the party requesting the admission may move the court for an order requiring the party to whom the request was directed to pay the reasonable expenses incurred in making that proof, including reasonable attorney's fees. “(b) The court shall make this order unless it finds any of the following: “(1) An objection to the request was sustained or a response to it was waived under Section 2033.290. “(2) The admission sought was of no substantial importance. “(3) The party failing to make the admission had reasonable ground to believe that that party would prevail on the matter. “(4) There was other good reason for the failure to admit.” The party seeking cost of proof fees “must show they spent the amounts claimed to prove the issues [their opponent] should have admitted. [Citations.] The requested amounts must be segregated from costs and fees expended to prove other issues. [Citations.] [¶] Costs of proof are recoverable only where the moving party actually proves the matters that are the subject of the requests. [Citation.] This means evidence must be introduced. [Citation.]” (<i>Grace v. Mansourian</i> (2015) 240 Cal.App.4th 523, 529–30.) Only expenses resulting from the responding party's failure to admit the requests for admissions are awardable. Therefore, expenses and fees incurred before the requests were denied are not awardable under Code of Civil Procedure section 2033.420. (<i>Garcia v. Hyster Co.</i> (1994)
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		28 Cal.App.4th 724, 736; <i>Wimberly v. Derby Cycle Corp.</i> (1997) 56 Cal.App.4th 618, 638.) As advised by Weil & Brown, California Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) at paragraphs 8:1413.1a and 8:1413.1b, "An accounting is required (e.g., by declarations from moving party's counsel) setting forth the hourly fees and time spent to 'prove' the specific matters denied, as opposed to time spent in preparation for trial generally or in proving other matters at trial of the case. [<i>Garcia v. Hyster Co.</i> (1994) 28 CA4th 724, 737, 34 CR2d 283, 290—conclusionary statements by counsel not sufficient] [¶] . . . Carefully track your time and costs associated with proving matters on an issue-by-issue (RFA-by-RFA) basis to facilitate granting of your motion for compensation. But the 'statute does not require that fees and costs must be separately allocated to each specific request for admission, particularly not where, as here, virtually all the requests relate to a single issue.' [<i>Association for Los Angeles Deputy Sheriffs v. Macias</i> (2021) 63 CA5th 1007, 1030-1031, 278 CR3d 487, 507-508 (also noting that counsel's declaration re fees compiled under his direction was not inadmissible hearsay).]" Here, Defendants have made no effort to segregate the fees expended to allegedly prove the specific matters identified in the requests for admissions Plaintiff denied and other matters and other work performed. Indeed, Defendants seek attorney fees for all work performed from the date JStar propounded its first set for admissions. For example, Defendants seek attorney fees for their unsuccessful summary judgment motion and in opposing Plaintiff's summary judgment. Section 2033.420 authorizes the recovery of attorney fees and expenses incurred to prove the matter that was denied in the requests for admissions. Nothing in either summary judgment motion proved any matter that was denied in the requests for admissions. Defendants apparently contend if Plaintiff had admitted the requests for admissions, Defendants would have prevailed on their summary judgment motion and there would have been no need for a trial. So, not only are Defendants entitled to all their attorney fees incurred at trial, they are entitled to all attorney fees they incurred from the date JStar propounded its first set of requests for admission—i.e., all but \$7,525 (\$321,728 minus \$314,203) of the attorney fees Defendants incurred. Defendants cite no authority to support this incredibly broad interpretation
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		of section 2033.420, and the statutory language does not support it. Similarly, Defendants make no attempt to segregate the fees incurred in defending JStar and the fees incurred in defending Merrell. None of the fees billed defending Merrell can be the basis for a cost of proof sanction. The requests for admissions were served by JStar only, and therefore cost of proof sanctions can be recovered only for time spent defending JStar. The statute does not authorize another person to obtain cost of proof sanctions. (Code Civ. Proc., § 2033.420; <i>Design Built Sys. v. Sorokine</i> (2019) 32 Cal.App.5th 676, 694–95.) Certainly, there was overlap, and likely significant overlap, in the fees incurred in defending JStar and Merrell, but there is no showing they were identical and the burden on this motion is on Defendants. Further, there has been an insufficient showing the content of any particular request for admission denial was subsequently proven at trial. For example, request for admission no. 5 asked Plaintiff to “Admit YOU initialed each page of the CONTRACT on September 11, 2016.” Although Defendants cite to deposition testimony where Plaintiff was asked if he signed the contract, there is no citation to evidence showing he ever stated he initialed the contract. Moreover, although counsel states the “testimony was ultimately read into evidence” (Saccuzzo Supp. Decl. ¶129), the trial transcript is not attached and there is no explanation as to what the context was in which it was read into evidence. For example, JStar failed to show where it was required to expend time at trial or otherwise proving Plaintiff initialed the contract. Additionally, several of the requests for admissions ask for admissions as to Plaintiff’s mental capacity to understand the contract he was signing. Defendants argue this resulted “in considerable litigation” but there is no explanation as to which time entries reflect work proving facts which were denied. Although Defendants cite to the deposition of Dr. Trader as evidence contradicting the denials, all that Dr. Trader said was that he did not know “Mr. Gamo’s level of cognitive impairment” on the date he signed the contract. In opposition, Plaintiff points to a tentative ruling of the court on Plaintiff’s request for admissions motion which discusses evidence supporting denial of the requests for admissions and that Plaintiff had a reasonable belief he would prevail on the issue.
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		Again, Defendants argue that if the requests for admissions had been admitted, they would have prevailed on their summary judgment motion. (Motion at 12:12-15.) Defendants, however, fail to prove that is the case. It would be error for the court to rely on “a conclusory statement of counsel.” (<i>Garcia v. Hyster Co.</i> (1994) 28 Cal.App.4th 724, 737.) In addition to the foregoing, the Defendants have failed to segregate which time was spent proving the facts relating to the requests for admissions in set one as opposed in set two. Also, only fees incurred after the denial are recoverable and therefore the Defendants’ request for fees starting on the date the first set of requests for admissions was served is improper. (<i>Wimberly v. Derby Cycle Corp.</i> (1997) 56 Cal.App.4th 618, 638.) In short, Defendants have numerous fatal failures in their showing to support this motion. They fail to show precisely what facts Plaintiff denied they were forced to truly prove at trial. They appear to assume that because they prevailed at trial they necessarily proved every fact Plaintiff denied in the cited requests for admissions. Indeed, nothing is presented to show what Defendants proved at trial. Moreover, there is no attempt to differentiate between the fees that were incurred to prove the matters Plaintiff denied and the fees that were incurred on all other issues and proceedings in the case. Contrary to Defendants’ contention, there is no authority for them to recover all their fees because they believe they would have prevailed on summary judgment. Based on the foregoing, the motion is DENIED. Plaintiff’s counsel is ordered to give notice of this ruling.
10.	<i>Lopez vs. Nissan North America, Inc.</i> <i>2024-01388370</i>	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court is the motion for attorney fees, costs, and expenses filed by plaintiff Karina E. Lopez (Plaintiff) against defendant Nissan North America, Inc. (Defendant). As more fully set forth below, the motion is GRANTED in the reduced amount of \$21,789.22. The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs, and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiff’s right to recover her attorney fees, costs, and expenses. Rather,

	the dispute focuses on what is the reasonable amount of attorney fees, costs, and expenses. Plaintiff seeks an order awarding \$35,406.47 for (1) \$21,491.50 incurred in attorney fees, plus a 1.5 multiplier for a total of \$32,237.25; (2) an additional \$2,400.00 for anticipated hours in reviewing the opposition, drafting the reply, and attending the hearing on this motion; and (3) \$769.22 for Plaintiff's uncontested costs and expenses. As an initial matter, Defendant's evidentiary objections are OVERRULED. The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794, subd. (d).) "Determining a reasonable attorney fee award in Song Beverly Act cases "'ordinarily begins with the 'lodestar,' [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.'" [Citation.] The lodestar may 'then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.' [Citation.] The lodestar method 'anchors the trial court's analysis to an objective determination of the value of the attorney's services,' and thus ensures the amount awarded is not arbitrary. [Citation.]" (<i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1157-1158.) <u>Hourly Rates:</u> The reasonable hourly rate in this case are those charged by consumer attorneys practicing in the local legal community in Orange County. (<i>Tidrick, supra</i>, 112 Cal.App.5th at p. 1158.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (<i>Heritage Pac. Fin., LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009; <i>569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437.) The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates.
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(*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632.)

Here, Plaintiff seeks hourly rates for partner Carey Wood of \$560, senior associate Iraida Gonzalez of \$480, and associate Walker of \$440 and associate Rogers of \$430, and paralegals of \$215. Based on the evidence provided by the parties, and the court's own experience, the court finds the hourly rates sought are high based on the respective attorney's level of skill and experience. The court approves the following rates: \$500 for Wood, \$450 for Gonzalez, and \$400 for both Rogers and Walker, and \$200 for the paralegals given the facts and circumstances of this particular case.

Hours Expended: "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may either "attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (*Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.* (2008) 163 Cal.App.4th 550, 563-564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (*Id.* at p. 564.)

Fee award amounts are matters within the trial court's discretion because the "trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

Here, Plaintiff seeks 52.5 total hours of attorney and paralegal time. Defendant contends that 1.3 total hours for preparing the case management statement and multiple reviews of Defendant's case management statement are unreasonable. The court finds some of the time spent is purely clerical. The following time is denied: by Rogers on 08/14/24 (0.2) and by Olvera on 09/06/24 (0.3) and 9/9/24 (0.1).

Defendant next contends the time spent on preparing and responding to discovery requests, and preparing its

standard discovery motion, are excessive particularly since Plaintiff's counsel uses templates. The billing records show, however, the time spent on each matter is generally reasonable and commensurate with the relative attorney's skill and experience. The total time spent also is reasonable.

Defendant argues Plaintiff has overbilled for anticipated time in drafting the reply and attending the hearing on this fee motion. Plaintiff seeks 5 total hours to review the opposition, prepare the reply, and attend the hearing. The court finds the time to be reasonable.

Other than the hours specifically objected to by Defendant, the billing records show the paralegals routinely billed for purely clerical and administrative tasks that should ordinarily be covered by the firm overhead and reflected in attorney time. The court may reduce the hours it determines were excessive or not supported. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816; *Christian Research Institute v. Ahor* (2008) 165 Cal.App.4th 1315, 1326-29.) The paralegals billed for time reviewing documents for filing purposes, to check deadlines, update the calendar, or for no stated purpose. Many of the entries also appear duplicative of the attorney's work. The following entries are denied: by Olvera on 04/03/24 (0.3), 04/03/24 (0.1), 09/16/24 (0.1), 09/17/24 (0.2), 09/25/24 (0.2), 10/08/24 (0.5), 10/15/24 (0.6), 10/15/24 (0.1), 11/19/24 (0.1), 11/21/24 (0.1), 01/07/25 (0.1), 01/07/25 (0.1), 02/03/25 (0.1), 02/27/25 (0.1), 02/28/25 (0.8), 06/13/25 (0.2), 06/18/25 (0.1), 06/27/25 (0.1), 07/11/25 (0.1), 10/08/25 (0.1); by Walls on 04/23/24 (0.1), and 04/23/24 (0.1); and by Flores on 11/13/25 (0.2), 11/13/25 (0.1), 11/21/25 (0.1), and 01/20/26 (0.3).

The lodestar is fixed in the amount of \$21,020 as follows:

<u>Timekeeper</u>	<u>Rate</u>	<u>Hours</u>	<u>Amount</u>
Wood	\$500	3.2	\$1,600
Gonzalez	\$450	6.2	\$2,790
Rogers	\$400	32.6	\$13,040
Walker	\$400	1.8	\$720
Paralegals	\$200	3.1	\$620
Anticipated time on this motion	<u>\$450</u>	<u>5.0</u>	<u>\$2,250</u>

		TOTAL \$21,020 <u>Multiplier:</u> The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases, and the adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (<i>Ketchum, supra</i>, 24 Cal.4th at p. 1138.) The court exercises its discretion to deny an award of an enhancement or multiplier because it does not find the facts and circumstances of this case to justify a multiplier. <u>Costs:</u> Plaintiff filed a costs memorandum stating she incurred \$769.22 in costs. (ROA 60.) Defendant does not challenge these costs by way of a motion to strike or tax costs, or in opposition to the instant motion. <u>Total Award:</u> When the amount of fees awarded (\$21,020) is added to the costs and expenses awarded (\$769.22) the total award is \$21,789.22. Based on the foregoing, the motion for attorney fees, costs, and expenses is GRANTED, and Plaintiff is awarded a total of \$21,789.22 as against Defendant. Plaintiff's counsel is ordered to give notice of this ruling.
11.	<i>Litrinium, Inc. vs. Adas</i> 2021-01210846	Due to the court's unavailability as stated above, the hearing in this case is continued to TUESDAY, JUNE 16, 2026, AT 10:00 A.M., IN DEPARTMENT C23. A tentative ruling will be posted in advance of that hearing. The clerk is directed to give notice of this ruling.
12.	<i>Claim of Tran</i> 2025-01489611	<u>Please see notice above regarding oral argument on this motion/petition</u> Before the court are (1) a status conference, and (2) an order to show cause as to why monetary sanctions should not be imposed on Tran's counsel, Kevin Gres, for his failure to appear at the May 11, 2026 hearing as ordered by the court. All counsel are ordered to appear for the status conference and the order to show case hearing.
13.	<i>Claim of Tran</i> 2025-01527304	<u>Please see notice above regarding oral argument on this motion/petition</u>

		Before the court are (1) the motion of petitioner The People of the State of California (Petitioner) to compel claimant Minh Hien Tran (Tran) to respond to special interrogatories, set one,(2) Petitioner’s motion to compel Tran to respond to form interrogatories—general, set one, (3) a status conference, and (4) an order to show cause as to why monetary sanctions should not be imposed on Tran’s counsel, Kevin Gres, for his failure to appear at the May 11, 2026 hearing as ordered by the court. <u>Motion Nos. 1 & 2: Motions to Compel Responses</u> When a party fails to timely serve responses to interrogatories, that party waives all objections to the interrogatories and the right to exercise the option to produce writings under Code of Civil Procedure section 2030.230. The propounding party may bring a motion to compel responses. (Code Civ. Proc., § 2030.290, subds. (a),(b).) On April 2, 2026, Petitioner filed these motions seeking to compel Tran to respond to the special interrogatories and form interrogatories. The motions show the discovery requests were served on Tran by mail on January 30, 2026, making his responses due by March 6, 2026. The declarations in support of the motions state Tran had not served any responses as of the time the motions were filed on April 2, 2026, despite Petitioner reaching out to request responses. Based on the foregoing, the motions are GRANTED. Tran is ordered to serve code-compliant responses without objections to both sets of interrogatories within 20 days of service of notice of this ruling. Counsel for Petitioner is ordered to give notice of this ruling. <u>Status Conference and Order to Show Cause</u> All counsel are ordered to appear for the status conference and the order to show case hearing.
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